



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9809 (EXTENSION)
ORIGINAL October 19, 1987

JAN 16 1997

In accordance with 49 CFR 107.109 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9809 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to December 31, 1998. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.109. This extension constitutes a necessary part of this exemption and must be attached to it.

for Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

1/16/97
(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Texas-New Mexico Pipe Line Company
San Angelo, TX

November 14, 1996



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DOT-E 9809

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1. Texas-New Mexico Pipe Line Company, San Angelo, Texas, is hereby granted an exemption from those provisions of the Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of flammable liquids for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the use of a non-DOT specification container, and provides no relief from any regulation other than as specifically stated.
2. **BASIS.** This exemption is based on Texas-New Mexico Pipe Line Company's application dated June 2, 1987, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.
3. **HAZARDOUS MATERIALS (Descriptor and class).** Hydrocarbon products classed as flammable liquids.
4. **PROPER SHIPPING NAME (49 CFR 172.101).** Flammable liquid n.o.s.
5. **REGULATION AFFECTED.** 49 CFR 173.119.
6. **MODES OF TRANSPORTATION AUTHORIZED.** Motor vehicle.
7. **SAFETY CONTROL MEASURES.** Packaging prescribed is a non-DOT specification container described as a mechanical displacement meter prover mounted on a truck complying with Maintenance Mechanical Corporation drawing D-4448 dated December 31, 1968, on file with the Office of Hazardous Materials Transportation (OHMT). The pressure vessel is made up of seamless 4 inch through 10 inch nominal pipe size, schedule 40 or equivalent pipe. Pipe assembly is by 300 lb. ASA welded flange joints. The maximum service pressure is 720 psig. Pressure relief devices are not required. The prover has a nominal water capacity of 140 gallons and is designed to ANSI Standard B31.4. In addition:
 - a. The pressure rating as determined from the pipe component with the lowest rating must be marked on each prover unit.
 - b. During transportation the pressure in the prover must not exceed 25 percent of pipe pressure rating at ambient temperature.
8. **SPECIAL PROVISIONS.**
 - a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
 - b. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

c. Each prover must be visually reinspected once a year and retested once every 5 years at not less than 75 percent of the prover's design pressure.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents or damage to the package must be reported to the OHMT as soon as practicable.

10. EXPIRATION DATE. August 31, 1989.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials Transportation

OCT 19 1987

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation,
Research and Special Programs Administration, U.S. Department of Transportation,
Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA